

Founding Board Adoption Packet

Organizational Actions, Resolutions, Committee Charters, Banking & Tax Activation

Version 0.3 | September 19, 2026

[[ORGANIZATION_NAME]]

Founding draft for board adoption after incorporation and Tennessee nonprofit counsel / tax-adviser review. Not legal or tax advice.

How to use this packet

Resolve the legal-name and statutory-member filing gates first. After Tennessee incorporation, use the incorporator action if needed, then conduct the organizational meeting (or counsel-approved written-consent alternative). Do not treat placeholder signatures as executed corporate action.

Packet contents

- Filing Decision Gate
- Action of Incorporator(s)
- Organizational Meeting Agenda
- Initial Board Organizational Resolutions
- Unanimous Written Consent Alternative
- Director Acceptance & Independence Acknowledgment
- Officer Acceptance
- Standing Committee Charters
- Banking / Payment-Control Resolution
- Tax / Regulatory Resolutions
- Donation Receipt Standard
- First 90-Day Activation Plan
- Current Legal Source Notes

Filing Decision Gate - Items That Must Be Resolved Before Tennessee Charter Filing

Gate A - Legal identity

- Legal corporate name: [[ORGANIZATION_NAME]]
- Principal office: [[ADDRESS]]
- Registered office / county: [[ADDRESS / COUNTY]]
- Registered agent: [[NAME]]
- Incorporator: [[NAME / ADDRESS]]
- Fiscal year end: [[DECEMBER 31 unless deliberately changed]]

Gate B - Statutory members

Select exactly one:

- ☐ **Member corporation.** Use v0.2 02_model_charter_member.md plus Schedule M. Statutory members receive the rights assigned by Tennessee law and the governing documents.
- ☐ **Nonmember corporation.** Use v0.2 03_model_charter_nonmember.md plus Schedule N.
Congregants/participants may have robust participatory rights without being statutory corporate members.

Do not use "member" casually in public documents if the nonmember model is selected; use terms such as participant, congregant, covenant participant, affiliate, or supporter unless counsel approves the terminology.

Gate C - Initial board

Tennessee law requires at least three directors. This governance system uses a stronger formation target: at least five directors at organization, majority independent, expanding to 7-11 directors with at least two-thirds independent within 180 days.

Proposed directors: [[NAMES]]

Before election/appointment, each proposed director should complete:

- conflict and independence disclosure;
- acceptance of fiduciary duties;
- safeguarding/integrity acknowledgement;
- background/suitability review appropriate to role.

Gate D - Federal tax posture

Select a filing strategy with tax counsel/CPA:

- ☐ Seek IRS determination as a **church** using Form 1023 and Schedule A, once the facts support church classification.
- ☐ Seek IRS determination as a **religious public charity** under an appropriate public-support classification, without initially requesting church classification.
- ☐ Rely temporarily on the automatic church exception from Form 1023 only if counsel concludes the organization already satisfies the facts-and-circumstances church standard; still consider applying for a determination letter for donor/institutional certainty.

Do not use Form 1023-EZ if requesting recognition as a church. Current IRS instructions specifically make a church applicant ineligible for 1023-EZ.

Gate E - Launch boundary

No public launch involving donations, minors/vulnerable persons, compensated founder/executive roles, communal housing, or material financial commitments should occur until the corresponding v0.2 controls are active.

Action of Incorporator(s)

Corporation: [[ORGANIZATION_NAME]]

Effective date: [[DATE AFTER CHARTER ACCEPTANCE]]

This action is intended for use when the filed charter does **not** name the initial directors. Tennessee law permits incorporators, after incorporation, to elect directors and complete organization or elect a board that will complete organization. Tennessee also permits incorporator action without a meeting when all incorporators consent and the action is recorded in the corporate records.

Recitals

1. The Tennessee Secretary of State has accepted the Charter of [[ORGANIZATION_NAME]], effective [[DATE/TIME]].
2. The Corporation must be organized under the Tennessee Nonprofit Corporation Act and its filed Charter.
3. The incorporator(s) have reviewed the proposed directors' conflict and independence disclosures.

Resolutions

RESOLVED, that the following persons are elected as the initial directors of the Corporation, to serve until their successors are duly elected/appointed and qualified or until earlier resignation/removal under the governing documents:

Director	Independent?	Initial term/class	Signature/acceptance received?
'[[NAME]]'	'[[Y/N]]'	'[[...]]'	'[[...]]'
'[[NAME]]'	'[[Y/N]]'	'[[...]]'	'[[...]]'
'[[NAME]]'	'[[Y/N]]'	'[[...]]'	'[[...]]'
'[[NAME]]'	'[[Y/N]]'	'[[...]]'	'[[...]]'
'[[NAME]]'	'[[Y/N]]'	'[[...]]'	'[[...]]'

RESOLVED, that the directors are authorized and directed to complete the organization of the Corporation, including adoption of bylaws, appointment of officers, activation of the Institutional Integrity & Anti-Coercion Framework, obtaining an EIN, opening corporate financial accounts, and taking lawful steps toward federal/state tax-exempt treatment.

RESOLVED, that this action and the director acceptance documents shall be placed permanently in the corporate record book.

Signatures

Incorporator: _____ Date: _____

Name: [[NAME]]

Additional incorporator(s), if any: _____

Organizational Meeting - Master Agenda

Pre-meeting evidence file

- Filed Charter and Secretary of State acceptance.
- Director roster and independence/conflict certifications.
- v0.2 Constitutional Governance Package.
- v0.2 Day-One Integrity Operations Manual.
- Founder Covenant.
- Proposed officer slate.
- Committee charters.
- Proposed fiscal/banking/accounting resolutions.
- Filing Decision Gate memorandum.

Agenda

1. Call to order; confirm notice/quorum.
2. Secretary pro tempore and meeting chair.
3. Confirm filed Charter and incorporator action/initial directors.
4. Record conflicts, recusals, and director-independence determinations.
5. Adopt bylaws and the selected Member or Nonmember Variant Schedule.
6. Adopt Institutional Integrity & Anti-Coercion Framework and Participant Bill of Rights.
7. Adopt Board Reserved Powers Schedule and Board Independence Standard.
8. Adopt Founder Covenant and receive founder signature.
9. Elect/appoint officers.
10. Establish standing board committees and appoint initial members.
11. Adopt conflicts, compensation, finance, safeguarding, complaints, investigations, discipline/appeals, exit/non-retaliation, pastoral ethics, revelation/doctrine, and external-review policies.
12. Establish fiscal year and accounting basis; authorize bookkeeping and financial controls.
13. Authorize EIN application and federal 501(c)(3) preparation.
14. Authorize bank account(s), signers, payment controls, and restricted-fund accounting.
15. Address Tennessee charitable-solicitation exemption/registration review.
16. Address Tennessee tax accounts/exemptions and future property-tax applications if applicable.
17. Confirm current federal BOI/CTA status review.
18. Activate independent complaint and safeguarding escalation channels.
19. Approve insurance procurement review.
20. Establish corporate record book and records-retention schedule.
21. Approve first-90-day implementation plan and dashboard cadence.
22. Other properly presented business.
23. Executive session if needed for compensation/personnel/conflict matters.
24. Adjournment.

Initial Board Organizational Resolutions

Corporation: [[ORGANIZATION_NAME]]

Meeting date: [[DATE]]

The Board of Directors, having reviewed the filed Charter, the v0.2 integrity governance package, director disclosures, and the matters presented, adopts the following resolutions.

Resolution 1 - Governing documents

RESOLVED, that the Board adopts the Bylaws dated [[DATE]], together with **[select one: Schedule M - Statutory Voting-Member Model / Schedule N - No-Statutory-Member Model]**, subject always to the filed Charter.

RESOLVED, that the Board adopts and incorporates into its governance system the Institutional Integrity & Anti-Coercion Framework, Participant Bill of Rights, Board Reserved Powers Schedule, Board Independence Standard, and Founder Covenant.

Resolution 2 - Founder non-sovereignty

RESOLVED, that "Founder" is an historical designation and conveys no ownership, veto, life tenure, unilateral succession power, self-compensation authority, immunity from investigation, or right to control a board majority; and that the serving founder shall execute the Founder Covenant before exercising executive or spiritual authority on behalf of the Corporation.

Resolution 3 - Officer appointments

The following officers are appointed subject to the Bylaws and written role descriptions:

Office	Person	Compensation status	Conflict/independence notes
Chair	`[[...]]`	`[[...]]`	`[[...]]`
Vice Chair	`[[...]]`	`[[...]]`	`[[...]]`
President / Chief Executive	`[[...]]`	`[[...]]`	`[[...]]`
Secretary	`[[...]]`	`[[...]]`	`[[...]]`
Treasurer	`[[...]]`	`[[...]]`	`[[...]]`

No appointment approves compensation unless the minutes expressly say so after the required disinterested compensation process.

Resolution 4 - Standing committees

RESOLVED, that the following standing board committees are established under the attached charters:

- Governance & Nominating Committee;
- Finance, Audit & Stewardship Committee;
- Safeguarding & Institutional Integrity Committee.

The Board may establish a Doctrine, Research & Epistemic Integrity Council as an advisory body; it shall not possess authority to override the Board's statutory duties, safeguarding controls, civil law, or entrenched participant rights.

Resolution 5 - Policy suite

RESOLVED, that the v0.2 policy and SOP suite is adopted effective immediately, including conflicts/related parties, compensation, financial controls, safeguarding, complaints/whistleblowing, independent investigations,

discipline/appeals, exit/non-retaliation, pastoral ethics, revelation/doctrine, external integrity review, and annual leadership certification.

Resolution 6 - Fiscal year and accounting

RESOLVED, that the Corporation's initial fiscal year ends [[MONTH DAY; default December 31]]; that books shall be maintained on [[cash/accrual]] basis as advised by the Corporation's accountant; and that the Treasurer/Finance Committee shall implement the v0.2 Financial Controls SOP.

Resolution 7 - EIN and tax-exempt preparation

RESOLVED, that after legal formation an authorized principal officer may obtain an EIN directly from the IRS and preserve the confirmation notice in the permanent records.

RESOLVED, that officers are authorized to prepare, but not submit without Board/counsel approval, Form 1023 and related schedules/supporting documents for recognition under Section 501(c)(3). The Board shall separately approve the requested public-charity/church classification after reviewing the factual record.

Resolution 8 - Banking and payment authority

RESOLVED, that corporate bank/depository accounts may be opened only in the Corporation's legal name and EIN; no corporate funds shall be held in a founder's, officer's, participant's, or employee's personal account.

RESOLVED, that bank signers and electronic-payment administrators are designated in the Banking Resolution, subject to dual-approval and related-party controls adopted by the Board.

Resolution 9 - Complaint and safeguarding channels

RESOLVED, that no public launch serving participants shall occur until ordinary and independent complaint channels are active and published; and no activity serving minors/vulnerable persons shall begin until the safeguarding lead, independent escalation path, screening/training, and external-reporting protocol are active.

Resolution 10 - Tennessee compliance

RESOLVED, that officers shall maintain a compliance calendar including the Tennessee Secretary of State annual report deadline, state tax/exemption applications applicable to the Corporation, charitable-solicitation registration/exemption status, and any local licensing obligations.

Resolution 11 - Corporate Transparency Act / BOI

RESOLVED, that the Secretary shall document the current federal BOI rule in the compliance file. As of the source check dated September 19, 2026, FinCEN states that U.S.-created companies are exempt from BOI reporting under the final rule effective August 14, 2026. The Secretary shall re-check the rule if law/guidance changes.

Resolution 12 - Insurance and risk transfer

RESOLVED, that the Corporation shall obtain quotations/advice appropriate to its activities, considering general liability, directors and officers liability, employment-practices liability, abuse/molestation coverage, workers' compensation when applicable, property/auto/cyber coverage, and professional/pastoral exposures. Coverage selections shall be documented; lack of affordable coverage does not authorize bypassing safeguarding controls.

Resolution 13 - Corporate record book

RESOLVED, that the Secretary shall maintain the Corporate Record Book & Compliance Binder v0.3 and document hierarchy register, including permanent records of charter, bylaws, amendments, board/member actions, key tax determinations, and required accounting/governance records.

Resolution 14 - First 90 days

RESOLVED, that management and committees shall execute the v0.2 implementation queue, including expansion to 7-11 directors with at least two-thirds independence, tabletop tests, independent complaint-channel test, first quarterly integrity dashboard, and publication of participant rights and reporting channels.

Certification

Secretary: _____ Date: _____

Chair: _____ Date: _____

Unanimous Written Consent of the Initial Board - Alternative to a Meeting

Use only if counsel confirms action without a meeting is appropriate for the organizational actions contemplated. Tennessee law generally permits board action without a meeting when all directors consent to taking the action and the written consents are filed with the corporate records, unless the charter/bylaws provide otherwise.

The undersigned constitute all directors of [[ORGANIZATION_NAME]]. Each director consents to taking the actions described below without a meeting and records the director's vote/abstention as indicated.

Actions

The Board adopts, to the same extent as if approved at a duly called meeting, the resolutions contained in 46_organizational_resolutions.md, attached as Exhibit A, subject to every conflict/recusal limitation stated there.

Important: A written-consent mechanism does not cure a substantive conflict. A director whose vote is prohibited by the conflict/compensation rules shall mark the affected matter as **ABSTAIN / NOT PARTICIPATING**, even though the director signs this consent to evidence consent to using the written-consent process.

Director	Consent to action without meeting	Governing docs	Officer slate	Policies	Tax/bank/admin resolutions	Conflicted matters/abstentions
'[[NAME]]'	Yes	For	For/Abstain	For	For/Abstain	'[[...]]'
'[[NAME]]'	Yes	For	For/Abstain	For	For/Abstain	'[[...]]'
'[[NAME]]'	Yes	For	For/Abstain	For	For/Abstain	'[[...]]'
'[[NAME]]'	Yes	For	For/Abstain	For	For/Abstain	'[[...]]'
'[[NAME]]'	Yes	For	For/Abstain	For	For/Abstain	'[[...]]'

Signatures: [[SIGNATURE BLOCKS]]

Director Acceptance, Independence & Fiduciary Acknowledgment

Name: [[DIRECTOR]] Date: [[DATE]]

I accept service as a director and acknowledge that the role is fiduciary, not honorary or proprietary. I agree to:

- act in good faith, with appropriate care, and in what I reasonably believe to be the Corporation's best interests;
- preserve charitable assets and comply with the Charter/Bylaws;
- complete and update conflict/independence disclosures;
- recuse when required and not permit spiritual/founder pressure to substitute for independent judgment;
- protect complainants, witnesses, critics, and departing participants from retaliation;
- treat safeguarding, mandatory reporting, financial integrity, and evidence preservation as non-waivable controls;
- maintain appropriate confidentiality without using confidentiality to conceal misconduct;
- challenge management or the founder when governance duties require it;
- resign rather than knowingly participate in sustained unlawful or materially coercive conduct if corrective mechanisms fail.

Independence disclosure

Employee/subordinate of employee? [[Y/N]]

Immediate family relationship with founder/senior employee/director? [[Y/N]]

Material vendor/business relationship? [[Y/N]]

Material financial support/housing/debt dependency? [[Y/N]]

Pastoral/counseling dependency affecting oversight? [[Y/N]]

Other actual/apparent conflict? [[DESCRIBE]]

Governance Committee determination: [[Independent / Not Independent / Conditional]]

Signature: _____

Officer Acceptance & Authority Acknowledgment

Officer: [[NAME]] Office: [[OFFICE]] Effective: [[DATE]]

I accept the office subject to the Charter, Bylaws, Board resolutions, and Institutional Integrity system. I understand that:

1. my authority is delegated and revocable, not spiritual ownership;
2. I cannot alter governing documents, compensation, conflict rules, safeguarding duties, or complaint pathways by personal declaration;
3. records and funds belong to the Corporation, not to me;
4. I must disclose conflicts and follow recusals;
5. I must preserve records and cooperate with authorized independent investigations;
6. I may be suspended or removed under the governing documents, including on an interim basis when safety/integrity reasonably requires it;
7. any ministerial or spiritual role I also hold does not supersede corporate fiduciary and civil obligations.

Signature: _____ Date: _____

Standing Board Committee Charters

A. Governance & Nominating Committee

Purpose: preserve board independence, succession integrity, governing-document compliance, director development, and conflicts administration.

Core duties:

- recruit/screen directors against independence criteria;
- administer annual conflict/independence disclosures;
- maintain skills/representation matrix without ideological loyalty tests that undermine oversight;
- oversee board self-assessment and succession;
- review proposed amendments for rights/power-concentration effects;
- recommend removal/suspension processes where governance failures arise.

Composition: at least three directors; majority independent; chair must be independent. Founder/chief executive may not chair or constitute a majority.

B. Finance, Audit & Stewardship Committee

Purpose: protect charitable assets and independent financial oversight.

Core duties: budget, financial reporting, bank-control review, restricted funds, reserves, external accountant engagement, insider compensation files, related-party transactions, whistleblower coordination for financial matters.

Composition: at least three directors; all voting participants on insider compensation/related-party matters must be disinterested. Treasurer may attend; executive management is not a voting member unless the Board expressly permits on non-conflicted matters.

C. Safeguarding & Institutional Integrity Committee

Purpose: independent oversight of safeguarding, complaints against senior leadership, retaliation, investigations, pastoral-power abuse, and external integrity review.

Authority: direct access to the Board; authority to retain independent counsel/investigators within Board-approved budget or emergency authority; access to relevant records subject to privilege/privacy controls; power to recommend interim measures.

Composition: at least three directors, all independent for matters involving the founder/chief executive. No person implicated in a matter may participate in its oversight.

D. Doctrine, Research & Epistemic Integrity Council (advisory)

Purpose: maintain transparent distinction among evidence, historical inference, philosophical interpretation, theological hypothesis, communal teaching, and personal revelation.

Limits: it is not a statutory board committee unless separately constituted; it cannot suspend civil law, safeguarding, financial controls, participant rights, or Board fiduciary duties; it cannot adjudicate complaints against its own members without independent oversight.

Banking, Depository & Payment-Control Resolution

Corporation: [[ORGANIZATION_NAME]]

Depository authorization

The Corporation may establish checking, savings, money-market, merchant-processing, and other lawful financial accounts in its legal name and EIN at institutions approved by the Finance Committee/Board.

Authorized persons

Initial bank signers / administrators: [[NAMES / ROLES]].

No signer obtains ownership of funds. Access ends promptly upon termination of authority.

Control matrix

Transaction	Required authorization
Routine budgeted payment below `[[THRESHOLD]]`	one authorized approver + ordinary documentation
Payment at/above `[[THRESHOLD]]`	two authorized approvals
Payment to founder/director/officer/related party	disinterested approval + documentation regardless of amount
New bank/merchant/investment account	Board or Finance Committee as delegated
Change of signer/admin	two-authority confirmation; prompt removal of former access
Wire/ACH to new vendor above `[[THRESHOLD]]`	out-of-band verification + dual approval
Borrowing, lien, guarantee, real-property transaction	Board Reserved Power; legal review as appropriate

Prohibitions

- no personal accounts for corporate funds;
- no shared credentials where individual credentials are available;
- no blank checks/pre-signed payment instruments;
- no cash withdrawal without documented business purpose and approval;
- no founder/executive self-approval of reimbursement or compensation;
- no destruction of bank/payment records to avoid oversight.

Secretary certification: _____ Date: _____

Tax, Regulatory & Filing Resolutions

EIN

After legal formation, an authorized principal officer shall obtain an EIN directly from the IRS or by Form SS-4. The EIN confirmation shall be preserved permanently. No EIN shall be sought before legal formation.

Federal 501(c)(3)

Officers may prepare a Form 1023 application and supporting narrative/budgets. Submission requires Board approval after review of:

- organizing-document language;
- actual/proposed activities;
- compensation and related-party arrangements;
- fundraising and public-support assumptions;
- requested public-charity classification;
- Schedule A facts if church classification is requested.

If requesting recognition as a church, do not use Form 1023-EZ under current IRS instructions.

Tennessee annual report

The Secretary shall calendar the Tennessee nonprofit annual report. Current Tennessee law states that a nonprofit corporation generally files on or before the first day of the fourth month following the close of its fiscal year, unless the Secretary of State sets another date by rule.

Charitable solicitations

Before public fundraising, determine and document whether the Corporation qualifies as a bona fide religious institution exempt from Tennessee charitable-solicitation registration or must register/claim another exemption. Do not assume that incorporation alone establishes the solicitation exemption.

Tennessee taxes/exemptions

After federal status and operational facts are available, evaluate/apply as appropriate for:

- Tennessee sales/use tax certificate of exemption for qualifying nonprofit purchases;
- franchise/excise tax treatment and unrelated-business considerations;
- business/sales tax duties for taxable sales;
- property-tax exemption for qualifying property actually used for exempt purposes.

Federal BOI/CTA

As of the September 19, 2026 source check, FinCEN states that domestic U.S.-created entities are exempt from BOI reporting under the final rule effective August 14, 2026. Record this conclusion and re-check after any material legal change.

Donation Receipt & Restricted-Gift Standard

Receipt content

For gifts for which a donor may need a contemporaneous written acknowledgment, the Corporation's receipt process should capture:

- legal name of the Corporation;
- date and amount of cash contribution;
- description, but not donor tax value, of noncash property;
- whether goods/services were provided in exchange;
- if provided, description and good-faith estimate of value, unless an applicable exception is documented;
- if applicable, statement that goods/services consisted entirely of intangible religious benefits.

Threshold controls

Current IRS guidance states that a donor generally needs a contemporaneous written acknowledgment for a single contribution of \$250 or more, and that a charity must provide a disclosure statement for a quid-pro-quo contribution over \$75. Configure receipt systems accordingly, while allowing receipts below thresholds as a stewardship practice.

Restricted gifts

1. No staff member may promise a restriction the Corporation cannot honor.
2. Material restrictions must be recorded in the accounting system.
3. A gift earmarked for an individual is not automatically a charitable restricted fund; tax/legal review may be needed.
4. Donor influence does not purchase governance, doctrine, investigation outcomes, access to minors, spiritual status, or leadership position.
5. Refund/variance requests are documented and handled under law, gift terms, and Board policy.

First 90-Day Activation Plan

Days 0-10 after incorporation

- Complete organizational meeting/consent.
- Obtain EIN; preserve CP575/confirmation.
- Open corporate bank account after resolutions.
- Activate bookkeeping/chart of accounts and restricted-fund classes.
- Publish Participant Bill of Rights and complaint channels.
- Execute Founder Covenant and all director/officer acceptances.
- Establish secure corporate record repository with access controls.

Days 11-30

- Complete Form 1023 classification evidence file and draft activity narrative/budgets.
- Confirm Tennessee charitable-solicitation status before broad fundraising.
- Obtain insurance proposals.
- Implement donation acknowledgment templates.
- Complete initial training: fiduciary, conflicts, safeguarding, anti-retaliation, complaint routing.
- Run founder-complaint tabletop and child-safety tabletop.

Days 31-60

- Recruit toward 7-11 director board and $\geq 2/3$ independence.
- Test anonymous/independent reporting channel.
- Finalize vendor/payment matrix and monthly close checklist.
- Conduct policy exception audit: target zero exceptions affecting participant rights/safeguarding.
- Build website transparency page: rights, board, reporting, finances/governance summary.

Days 61-90

- Produce first quarterly integrity dashboard.
- Board reviews compensation/related-party files, if any.
- Complete records-retention and privacy/security review.
- Schedule first external integrity review for no later than 18 months after public launch.
- Approve remediation plan for any failed tabletop/control tests.

Current Legal / Compliance Source Notes - v0.3

Checked: September 19, 2026. Counsel/CPA should verify again before filing or relying on an exemption.

Tennessee organization

- Tenn. Code Ann. § 48-52-102 (2025), Charter: requires, among other things, public/mutual benefit status, religious-corporation statement if applicable, registered office/agent, incorporator, principal office, nonprofit statement, whether the corporation will or will not have members, and dissolution provisions. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-52/section-48-52-102/>
- Tenn. Code Ann. § 48-52-105 (2025), Organization of corporation: organizational meeting rules and incorporator action without meeting. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-52/section-48-52-105/>
- Tenn. Code Ann. § 48-58-202 (2025), Action without meeting: board action without meeting generally requires all directors to consent to taking action and written consents filed with corporate records, unless governing documents provide otherwise. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-2/section-48-58-202/>
- Tenn. Code Ann. § 48-58-103 (2025): nonprofit board must have at least three natural persons; internal 7-11 / two-thirds-independent standard is voluntary and stricter. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-1/section-48-58-103/>
- Tenn. Code Ann. § 48-58-301 (2025): director duties of good faith, care, and best interests. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-3/section-48-58-301/>
- Tenn. Code Ann. § 48-66-203 (2025): annual report generally due on or before first day of fourth month following close of fiscal year, subject to SOS rule. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-66/part-2/section-48-66-203/>
- Tennessee Secretary of State, Business Forms & Fees: current business/nonprofit filing forms and fees. <https://sos.tn.gov/businesses/forms-and-fees>

Tennessee charitable solicitations / taxes

- Tennessee Secretary of State states bona fide religious institutions defined by Tennessee law are exempt from charitable-solicitation registration; other exemptions exist. Confirm factual eligibility before relying on this exemption. <https://sos.tn.gov/>
- Tennessee Department of Revenue, SUT-77: qualifying nonprofits generally must apply for and receive a Sales and Use Tax Certificate of Exemption before tax-exempt purchases; certificate is periodically reissued. <https://revenue.support.tn.gov/hc/en-us/articles/360058251372-SUT-77-Nonprofit-Exemption-Overview>
- Tennessee Department of Revenue, SUT-78: nonprofit exemption on purchases does not automatically exempt taxable sales; taxable sales may require collection/remittance. <https://revenue.support.tn.gov/hc/en-us/articles/360058700151-SUT-78-Nonprofit-Exemption-Nonprofit-Organizations-Making-Sales-of-Taxable-Products-or-Services>
- Tennessee State Board of Equalization: religious/charitable property-tax exemption generally requires application and qualifying ownership/use. <https://comptroller.tn.gov/boards/state-board-of-equalization/property-tax-exemptions.html>

Federal tax-exempt organization

- IRS, Employer Identification Number: tax-exempt organizations need an EIN; IRS says form the legal entity before applying for an EIN. <https://www.irs.gov/charities-non-profits/employer-identification-number>
- IRS Form 1023 instructions: churches may be exempt without filing but may file Form 1023 for a determination letter; Schedule A addresses church classification. <https://www.irs.gov/instructions/i1023>
- IRS Form 1023-EZ instructions: an organization seeking recognition as a church is not eligible to use Form 1023-EZ and should file Form 1023 if it wants a determination letter. <https://www.irs.gov/instructions/i1023ez>

- IRS charitable-contribution substantiation: donor acknowledgments for \$250+ and charity disclosures for quid-pro-quo contributions over \$75. <https://www.irs.gov/charities-non-profits/charitable-organizations/charitable-organizations-substantiation-and-disclosure-requirements>

Federal BOI / Corporate Transparency Act

- FinCEN BOI page, updated August 11, 2026: final rule exempts U.S. companies from BOI reporting; final rule became effective August 14, 2026. <https://www.fincen.gov/boi>

Drafting note

The documents deliberately exceed many statutory defaults. Any counsel edit should preserve the anti-coercion purpose whenever lawful: independent oversight, no self-compensation, no self-investigation, safe exit, no retaliation/shunning, safeguarding priority, and transparent distinction between claimed revelation and binding corporate authority.